THE COMPANIES ACT, 2013

(COMPANY LIMITED BY SHARES)

MEMORANDUM OF ASSOCIATION*

OF

BMD POWER PRIVATE LIMITED

I. The Name of the Company is BMD POWER PRIVATE LIMITED.

II. The Registered office of the company will be situated in the State of Haryana. **

III. The objects for which the Company is established are:-

A. THE MAIN OBJECT TO BE PURSUED BY THE COMPANY ON ITS INCORPORATION ARE:-

1. Establishment, operation and maintenance of hydro, thermal, nuclear and all other types of power generation/transmission, distribution, dealing and trading, servicing including all other forms of energy.

2. Operations and maintenance of such power generating stations, tie-lines, sub-stations and main transmission lines.

3. To manufacture, produce or otherwise engage in the manufacture or production of or deal in equipments and accessories relating to power.

4. To own or take on lease the coal mines and/or engage in coal gasification and carbon trading including carbon credits in domestic and international market and also to engage in the infrastructure development and construction of all types of activities and to manufacture, produce or otherwise engage in the manufacture or production of or deal in electrical KWH meters, magnets, electromagnets, power cables, industrial jewels. ammeters, voltmeters and other types of measuring, instruments, electrical or non-electrical, die casting, screws, nuts and bolts. tungsten filaments, transformers of all types, circuit breakers, punched card machines, computers and calculators and their accessories, hoists, elevators, trolleys and coaches, railway engines, winches, power generators, magnetic separators. winders, air compressors, welding machines, fans of all types. switches and motors of all types, drills, electric grinders, ACs, refrigerators, washing machines, television and wireless apparatus, telecommunication equipments, radio receivers and transmitters, electronic instruments, transistors and allied items, boilers, turbine manufacturing, consultancy relating to power, owing coal mines, coal gasification, thermal, nuclear infrastructure development, carbon trading, construction.

**The new set of Memorandum of Association, as per the Companies Act, 2013 were adopted by the members in the EGM held on 09.11.2020 by way of Special Resolution.*

*** Clause II is being altered by way of Special Resolution dated 09.11.2020.*

5. To engage in consultancy relating to power and to act as contractors for design, supply, fabrication, laying, installing and supplying of electrical transmission and distribution systems, sub-stations, installation of electrical equipment and panels, and to undertake tumkey or otherwise projects in Hydel, Thermal, Solar, Wind energy and any other energy source natural or otherwise for power generation and distributions systems, and to act as contractors for design and installation of railway electrification systems and electrical installation and to design and erect structures and towers and undertake civil construction of buildings, bridges, tanks. pipelines for sewerage, water, oil and gas and to undertake erection of structures connected with oil and gas drilling.

6. To take on lease or to provide any or all persons or bodies on lease, Hire-purchase, Deferred payment or installment payment basis, all types of Plant, Machinery, Equipment, Appliances, Vehicles, Buildings, Real Estate, Animals and all other goods and properties of every description, whether movable or immovable.

7. To carry on in India or elsewhere the business of establishing, commissioning, setting up, operating and maintaining electric power generating stations based on conventional/non-conventional resources, tie-lines, sub-stations and transmission lines on build, own and transfer (BOT), and/or build, own, lease and transfer (BOLT) and/or build, own, operate and transfer (BOOT) basis and to carry on in India or elsewhere the business of acquiring, operating, managing and maintaining existing power generation stations, tie-lines, sub-stations and transmission lines, either owned by the private sector or public sector or the Government, Governments or other public authorities, and for any or all of the aforesaid purposes, to do all the necessary or ancillary activities as may be considered necessary or beneficial or desirable.

8. To acquire concessions or licenses granted by, and enter contracts with the Government of India or the Government of any Province in India, or the Government of any state in India, or any municipal or local authority, company or person in India, or 'elsewhere, for the construction and maintenance of any electric installation for the production, transmission or use of electric power for lighting, heating, pumping, signaling, telephonic, or traction or motive purposes, including the application thereof to tramcars, omnibuses, carriages, ships, conveyances and objects, or any other purpose.

9. To generate, acquire by purchase in bulk, develop and accumulate electrical power at the place or places contemplated by the said license and to transmit, distribute and supply such power throughout the area of supply named therein and generally to generate, acquire by purchase in bulk, develop and accumulate

power at any place or places and to transmit, distribute and supply such power.

10. To carry on the business of an electric power, light and supply Company in all its branches, and in particular to construct, Jay down, establish, fix and carry all necessary power stations, cables, wires, fines, accumulators, lamps and works, and to generate, acquire by purchase in bulk, accumulate, distribute and supply electricity, and to fight cities, towns, streets, docks, markets, theaters, buildings and places, both public and private.

11. To carry on the business of purchase and sale of all forms of electric power, both conventional, and also to supply, import and export or otherwise deal in all forms of electric energy in all aspects. Without prejudice to generality of the above functions the Company shall carry out the business of (i) Purchase of all forms of power/electricity from Independent Power producers (IPPs),Captive Power Plants, other Generating companies, Transmission Companies, State Electricity Boards, State Government's statutory Bodies. Licensees, power utilities and to procure it from other sources (whether in private, public or joint sector undertaking) including import from abroad;(ii) sell all forms of electrical power to the State electricity boards, Vidut Boards, Power Utilities, Generating Companies, Transmission Companies. Distribution Companies, State Governments, Licensees. statutory bodies, other organizations and bulk consumers of power, whether in private and public sector or joint sector undertakings in India and abroad; (iii) Supply, distribute, transmit, export or otherwise transfer/exchange of electrical power, and (iv) Co-ordinate with all concerned for purchase, import, sale, export, distribute transmit and supply all forms of electrical power and undertake all concerned functions.

12. To manufacture, produce or otherwise engage in the manufacture or production of or deal in equipments and accessories related to renewal source of energy.***

13. Establishment, operation and maintenance of solar, wind, biomass & other forms of energy including generation, transmission, distribution, and trading of power.***

14. To manufacture, produce or otherwise deal in consumer, industrial and institutional products from solar modules/panels e.g. lanterns, street lighting, doors, windows, roofs, manufacture and trading of silicon-amorphous, crystalline and all other variety and products thereof, thin films, glass manufacturing of all kinds, selan gas, inert gases, nitrogen, oxygen, hydrogen, carbon trading and also manufacture, produce, or otherwise engage in the manufacture or production or deal in electrical KWH meters, magnets, electromagnets, power cables, industrial jewels, ammeters, voltmeters and other types of measuring, instruments, electrical or non-electrical, die casting, screws,

nuts and bolts, tungsten filaments, transformers of all types, circuit breakers, punched card machines, computers and calculators and their accessories, hoists, elevators, trolleys and coaches, railway engines, winches, power generators, magnetic separators, winders, air compressors, welding machines, fans of all types, switches and motors of all types, drills, electric grinders, ACs, refrigerators, washing machines, television and wireless apparatus, telecommunication equipments, radio receivers and transmitters, electronic instruments, transistors and allied items.***

15. To engage in process and technology development and to act as consultants and/or contractors for design, supply, fabrication, laying, installing and supplying of electrical transmission and distribution systems, sub-stations, installation of electrical equipment and panels, and to undertake turnkey or otherwise projects in Solar, Wind, Hydel, Thermal energy and any other energy source natural or otherwise for power generation and distributions systems, and to act as contractors for design and installation of railway electrification systems and electrical installation and to design and erect structures and towers and undertake civil construction of buildings, bridges, tanks, pipelines for sewerage, water, oil and gas and to undertake erection of structures connected with oil and gas drilling and process, technology development, design, engineering.***

16. To carry on the business of importers, exporters, buyers, sellers and dealers in and as brokers, agents, stockists, distributors and suppliers of all kinds of automotive and home furnishing fabrics, made-ups, apparels and other products, goods, articles and things, as are made from or with cotton, nylon, silk, polyester, acrylic and other kinds of fiber, by whatever name called or made under any process, whether natural or artificial, and by mechanical or other means.***

17. To carry on the business of importers, exporters, buyers, seller of and dealers in all kinds of Texturised yarns and fibers, whether natural, synthetic or artificial like nylon, polyester, acrylics, rayon, silk, artificial silk and any other fibres of fibrous materials including jute, hemp silk, cotton, wool, mesta, nylon, terene, terelyone, staple fibre or other synthetic fibre allied products, by products and substitutes for all or any of them.***

18. To carry on the business of merchant, broker, sub-broker, jobbers, agents, dealers, traders of all types of commodities and/ or goods (including Commodity Derivatives, Spot Commodities and currency exchange), and other items as may be permitted by the Commodity Exchange in India and to deal in future and options and in other derivatives in Commodity & Currency Exchange in India and to carry on business as hedgers and/or trader in agricultural products, property, Job work, works contract, metal including precious metals, precious stones, diamonds, Gems and Jewellery, petroleum and energy products

commodities and Garments including yarns, fabrics of wool, poplin , cotton, jute, silk, rayon, nylon and other natural, synthetics including readymade garments, and/or fibrous substance and /or to acquire, hold and trade in shares, stocks, securities, debentures, debenture stocks, Currency, Derivatives, bonds, obligations and securities or business in the Republic of India or elsewhere.***

B. MATTERS WHICH ARE NECESSARY FOR FURTHERANCE OF THE OBJECTS SPECIFIED IN CLAUSE III(A) ARE:

1. To purchase, otherwise to acquire, own, import all materials, substances, appliances, machines, containers and such other articles and apparatus and things capable of being used in the main business and to own, lease and otherwise acquire and use facilities of whatever kind as may be conducive to the effective working of the main business of the company.

2. To acquire, build, alter, maintain, remove or replace and to work, manage and control any building, offices, shops, machinery and conveniences which may seem necessary to achieve the main object of the company.

3. To buy, repair, alter, improve, exchange, import all machinery, tools, utensils, appliances, apparatus products, materials, substances, articles and things capable of being used in the main business of this company.

4. To purchase, take on lease or tenancy or in exchange, hire, take options over or otherwise acquire any estate or interest whatsoever and to hold, develop, work, concessions, grants, decrees, licences, privileges, claims, options, leases, property, right, or powers of any kinds which may appear to be necessary for the main business of the Company.

5. To pay for preliminary and pre-incorporation expenses of the Company.

6. To exchange, mortgage, royalty or tribute, grants, licences, easements, options and other rights over and dispose of the whole or any part of the undertaking, property, assets, rights and effects of the Company for consideration as may be thought fit and in particular for stocks, shares, debentures whether fully or partly paid-up or securities of any other company having main objects whole or in part similar to the Company.

*** *The sub clause number 12 to 18 are added in pursuance of order of Hon'ble NCLT, Chandigarh sanctioning the scheme of Amalgamation between BMD Renewable Energy Private Limited and BMD Power Private Limited effective from 09th February, 2024.*

7. Subject to the applicable provisions of the Companies Act, 2013, to pay for any rights or property acquired by the Company and or remunerate any person, firm or body corporate rendering services to the Company either by cash payment or by allotment to him or them of shares of securities of the Company as paid up in full.

8. To advance money, in connection with the main business either with or without security and give credit, to such persons (including Government) and upon such terms and conditions as the Company may think fit, to attain the main objects of the Company provided that the Company shall not carry on banking business within the meaning of Banking Regulations Act, 1949.

9. To undertake financial and commercial obligations, transactions and operations of all kinds, in connection with the main business of Company.

10. To guarantee the performance of any contract or obligations and the payment of money or dividends and interest on any stock, shares or securities of any company, corporation, firm or person in any case in which such guarantee may be considered directly to indirectly to further the main objects of the Company.

11. To guarantee the payment of money unsecured or secured or payable under or in respect of promissory notes, bonds, debentures, stocks, contracts, mortgages, or charges, obligations, instruments, securities of any company or of any authority, supreme, municipal, local or of any persons whether incorporated or not incorporated and generally to guarantee or become sureties for the performance of any contracts or obligations as may be necessary for the main business of the Company.

12. To subscribe for acquire, hold shares and dispose share stocks, debentures, debenture-stocks, bonds, mortgages, obligations, securities of any kind issued or guaranteed by any company (body corporate undertaking) of whatsoever nature and howsoever constituted and to subscribe for, acquire, hold shares, debentures and debenture-stocks, and debenture-bonds, mortgages, obligations and other securities issued or guaranteed by any Government sovereign ruler, commissioners, trust, Municipal, local or other Authority or body of whatsoever nature, whether in India or elsewhere as may be conducive to the main business of the Company.

13. Subject to the provision of Section 67 of Companies Act, 2013 to invest other than investment in Company's own shares any money of the Company not immediately required, in any investments, movable or immovable as may be deemed proper and to hold, or invest in shares or stock in the Company as may be necessary for the main business of the Company.

14. Subject to the section 73, 179, 180, 185 & 186 of the Companies Act, 2013 and the Rules made thereunder and the directions issued by Reserve Bank of India, to

receive money or deposit or loan and borrow in such manner as the Company shall think fit and in particular by the issue of debentures or debenture-stock and to secure the payment of any money borrowed, raised or owning on the mortgage, charge or lien upon all or any of the property or assets of the Company (both present or future) including its uncalled capital and also by similar mortgage, charge or lien to secure and guarantee the performance by the Company, or any other such person or Company, of any obligation undertaken by the Company. To draw, make, accept, endorse, negotiate, execute and issue bills of exchange, promissory notes, bills of lading, debentures and other negotiable or transferable instruments of securities of all types.

15. To draw, make, accept, endorse, negotiate, execute and issue bills of exchange, promissory notes, bills of lading, debentures and other negotiable or transferable instrument of securities of all types.

16. To apply for, purchase or otherwise acquire and protect, prolong and renew in any part of the world, any patents and patent rights, brevets d'inventions, trademarks, designs, licenses, protections, and concessions conferring any exclusive or non-exclusive or limited right to their use or other information as to any invention, process or privileges which may seem capable of being used for any of the main objects, business of the Company or the acquisition of which may seem calculated directly or indirectly, to benefit the company and to use, exercise, develop or grant licences or privileges in respect of or the property, rights and information so acquired.

17. To spend money in experimenting upon and testing and improving or seeking to improve any patents, rights, inventions, discoveries, processes, or information of the Company or which the Company may acquire or propose to acquire.

18. To do all or any of the main business activities either as principals, agents, trustees, contractors or otherwise and either alone or in conjunction with others and either by or through agents, sub-contractors, trustees or otherwise.

19. To acquire and takeover all, or any part of the business property and liabilities of any person, firm or company carrying on or proposing to carry on main business which this Company is authorised to carry on or possess property, suitable for the main business of the Company.

20. To procure the registration or recognition of the company in or under the laws of any place outside India.

21. To form, incorporate or promote any company or companies whether in India or elsewhere having amongst its or their objects the acquisition of all or any of the assets or controls, management or development of the Company or any other

such objects which in the opinion of the Company could or might directly or indirectly assist the Company in the management of its main business or the development of its properties or otherwise prove advantageous to the Company and to pay all or any of the costs and expenses incurred in connection with any such promotion or incorporation and to remunerate any person or company in any manner it shall think fit, for services rendered or to be rendered in or about the formation or promotion of the Company or the conduct of its main business or in or about the promotion of any other such company in which the Company may have an interest.

22. Subject to the provisions of Section 230 to 234 of the Companies Act, 2013, to amalgamate or to enter into partnership or any arrangement for sharing profits, union of interest, co-operation, joint venture or reciprocal rights with any person or persons of company or companies carrying on or engaged in the main business of the Company.

23. To enter into any arrangements and take all necessary or proper steps with Governments or with other authorities supreme, national, local, municipal or otherwise of any place in which the Company may have interests and to carry on any negotiations or operations for the purpose of directly or indirectly carrying out the main objects of the Company or effecting any modification in the constitution of the company or for furthering the interests of the members and to oppose any such steps taken by any other company, any firm or person which may be considered likely, directly or indirectly to prejudice the interest of the Company or its members and to assist in the promotion whether directly for indirectly of any legislation which may seem advantageous to the company and to obtain from such Government Authority and company any character, contracts, decrees, rights, grants, loans, privileges, or concessions which the company may think it desirable to obtain and carry out, exercise and comply with any such arrangements, charters, decrees, rights, privileges or concessions.

24. To adopt such means of making known the main business of the Company as may seem expedient and in particular by advertising in the press by circulars, by purchase and exhibition of works of art or interest, by publication of books and periodicals and by granting prizes, rewards and donation.

25. (a) To undertake and execute any trust, the undertaking of which may seem to the Company desirable and either gratuitously or otherwise and vest any real or personal property, rights or interests acquired by or belonging to the company in any person or Company on behalf of or for the benefit of the company and with or without any declared trust in favour of the Company.

(b) To accept gifts including by way of awards/prizes from Govt. and semi- Govt. bodies and to give gifts and donations to create trusts for the welfare of employees, members, directors and/or their dependents, heirs and children for deserving objects for and such other persons; also to act as trustees.

26. To apply the assets of the Company in any way in or towards the establishment, maintenance or extension of any association, institution or fund in any way connected with any particular trade or business or with trade or commerce and particularly with the trade, including any association, institution or fund for the interest of masters, owners and employers against ross by bad debt, strike, combustion, fire, accident or otherwise or for the benefit of any employee, workman or others at any time employed by the Company or any of its predecessors in business or their families or dependents and whether or not in common with other persons of classes of persons and in particular of friendly, co-operative and other society, reading rooms, libraries, educational and charitable institutions, dinning and recreation rooms, churches, schools, and hospitals and to grant gratuities, pensions and allowances and to contribute to any funds raised by public or local subscription for any purpose.

27. To aid pecuniarily or otherwise, any association, body or movement having for an object the solution, or settlement of industrial or labour problems or troubles or the promotion of industry or trade.

28. To subscribe or guarantee money for any national, charitable, benevolent, public general or useful object or for any exhibition subject to the provisions section 181 & 183 of the Companies Act, 2013.

29. To establish and maintain or procure the establishment and maintenance of any contributory or non-contributory pension or superannuation funds for the benefits of and give, procure the giving of donations, gratuities, pensions, allowances or emoluments to any persons who are or were at any time in the employment or service of the Company or are allied to or associated with the Company or with any such subsidiary Company or Who are or were at any time Directors of officers of the Company as aforesaid and the wives, widows, families and dependents of any such persons and also establish and subscribe to any institutions, associations, clubs or funds calculated to be for the benefit of or to advance the interest and well-being of the Company or of any such other Company as aforesaid and make payments to or towards the insurance of any such persons as aforesaid and do any of the matters aforesaid, either alone or in conjunction with any such other company as aforesaid.

30. To distribute among the members in specie or otherwise any property of the Company, or any proceeds of sale or disposal of any property of the Company,

in the event of its winding-up but so that no distribution amounting to a reduction of capital be made except subject to the provisions of section 66 the Companies Act, 2013.

31. To do all such other things as may be deemed incidental or conducive for the attainment of the main objects.

IV. The liability of the Members is limited and this liability is limited to the amount unpaid, if any, on the shares held by them.****

V. The Authorised Share Capital of the Company is Rs. 46,00,00,000/- (Rupees Forty Six Crore only) divided into - 4,60,00,000/- (Four Crore Sixty Lakh) Equity Shares of Rs.10/- (Rupees Ten) each.*****

*****Special Resolution passed in the AGM dated 27th September, 2021 in order to align as per Table "A" of the Companies Act, 2013*

******Pursuant to Merger Order passed by Hon'ble NCLT, Chandigarh dated 7th December 2023, the Authorized Share Capital of the Company is Rs. 46,00,00,000 /- (Rupees Forty Six Crores only) divided into 4,60,00,000 (Four Crore Sixty Lakh only) equity shares of Rs.10/- (Ten only) each.*

Sl. No.	Name, Description, Occupation and address of subscriber	Signature of subscriber	Name, Addressess, Description and Signature of witness
1.	SHEKHAR AGARWAL S/O SHRI S.N. AGARWAL R/O 7, SADHANA ENCLAVE NEW DELHI-110017 (INDUSTRIALIST)	Shekhar Agarwal	I hereby witness & attest the signatures of both the subscribers who have signed in my presence Signature DHRODAR PRASAD GUPTA S/o Late Sh. N.L. GUPTA 19, Rani Jhansi Road, New Delhi-110055 Company M.N. F.C.S. 2411 Secretary
2.	SHANTANU AGARWAL S/O. SHRI SHEKHAR AGARWAL R/O. 7, SADHANA ENCLAVE NEW DELHI-110017 (INDUSTRIALIST)	Shantanu Agarwal	

Place: NEW DELHI Dated: 31st October, 2008

THE COMPANIES ACT, 2013

(COMPANY LIMITED BY SHARES)

ARTICLES OF ASSOCIATION*

OF

BMD POWER PRIVATE LIMITED

1. The regulations contained in the Table marked 'F' in Schedule I to the Companies Act, 2013 as amended from time to time (hereinafter referred to as "the Act") shall apply to the Company, save in so far as they are excluded or modified by these Articles.

2. The Company is a Private Company and accordingly:-

   (i) Restrict the right to transfer its shares

   (ii) The number of members of the Company (exclusive of persons who are in the employment of the Company and of persons who having been formerly in the employment of the Company were while in such employment and have continued after the termination such employment as members of the Company) is limited to two hundred provided that where two or more persons holds one or more shares in the Company jointly, they shall for the purpose of this Article be treated as a single member;

   (iii) Prohibits any invitation to the public to subscribe for any securities of the Company.

3. The Company shall, after its incorporation, adopt and carry into effect, any agreement or agreements entered into or as may be entered into by and between the shareholders together with any alterations and amendments thereto as may be agreed from time to time and all such agreements shall be deemed to form part of these articles for all intents and purposes. Upon adoption of the said agreements, the Company shall be bound by the same and give effect to the terms thereof.

SHARE CAPITAL

4. The Authorized Share Capital of the Company shall be as stated in the Memorandum of Association of the Company.

5. The company by ordinary resolution may from time to time alter the conditions of Memorandum of Association:
   (i) increase the share capital by such sum, to be divided into shares of such amounts as it thinks expedient;
   (ii) consolidate and divide all or any of its capital into share of larger amount than its existing shares;
   (iii) subdivide its existing shares or any of them into shares of smaller amount that is fixed by memorandum so however, that in the subdivision the proportion

* This new set of Articles of Association were adopted by the Company at 9th Annual General Meeting held on Friday, 8th September, 2017

between the amount paid and the amount, if any, unpaid on each reduced share shall be the same as it was in the case of the share from which the reduced share is derived;

(iv) cancel any shares which at the date of the passing of the resolution, have not been taken or agreed to be taken by any person and diminish the amount of its shares so cancelled;

(v) convert all or any of its fully paid-up shares into stock and reconvert that stock into fully paid-up shares of any denomination.

6. The Company may, by Special Resolution, reduce in any manner and with, and subject to, any incident authorized and consent required by law,-

a. Its Share Capital
b. Any Capital Redemption Reserve Account, or
c. Any Share Premium Account

The Company may, from time to time, subject to the provisions of the Act, by a Special Resolution and subject to confirmation by the Court / Tribunal, reduce its share capital in any way, and in particular and without prejudice to the generality of the foregoing power, may –

(i) extinguish or reduce the liability on any of its shares in respect of share capital not paid up;

(ii) either with or without extinguishing or reducing liability on any of its shares, cancel any paid up share capital which is lost or unrepresented by available assets; or

(iii) either with or without extinguishing or reducing liability on any of its shares, pay off any paid up share capital which is in excess of the wants of the Company;

and, if and so far as is necessary, alter its Memorandum by reducing the amount of its share capital and of its shares accordingly.

7. Subject to the provisions of these Articles, the Shares in the capital of the Company shall be under the control of the Directors who may issue, allot or otherwise dispose of the same to such persons, in such proportion and on such terms and conditions, and either at par or at a premium and at such times as they may from time to time think fit.

8. Subject to the provision of the Act and these Articles, the Board may issue and allot shares in the capital of the Company on payment or part payment for any property or assets of any kind whatsoever sold or transferred, goods or machinery supplied or for services rendered to the Company in the conduct of its business and any shares which may be so allotted may be issued as fully paid up or partly paid otherwise than for cash, and if so issued, shall be deemed to be fully paid up or partly paid-up shares, as the case may be.

9. The Board or the Company, as the case may be , may, in accordance with the Act and the Rules, issue further shares to-

(i) Persons who, at the date of offer, are holders of equity shares of the Company; such offer shall be deemed to include a right exercisable by the person concerned to renounce the shares offered to him or any of them in favour of

any other person; or

(ii) Employees under any scheme of employees' stock option; or

(iii) Any persons, whether or not those persons include the persons referred to in clause (i) or clause (ii) above.

10. The Company may also issue further shares on Private placement basis and/ or on Preferential basis in terms of section 42, 62 and other applicable provision of the Act.

11. The Company shall be entitled to dematerialize all or any of its existing securities, rematerialize all or any of its securities held in the Depositories and/ or to offer its fresh securities or buy back its securities in a dematerialized form pursuant to the Depositories Act, 1996 and the Relevant Rules, if any.

BOARD OF DIRECTORS

12. Unless otherwise determined by the Company in General Meeting the number of Directors shall not be less than 2 (Two) and shall not be more than 15 (fifteen). The persons hereinafter named shall become and be the first Directors of the Company, that is to say:

1. Shekhar Agarwal

2. Ranjeet Singh Dugar

ALTERNATE DIRECTORS

13. The Board may appoint an alternate director to act for a director (hereinafter in this Article called "the Original Director") during his absence for a period of not less than three months from India. No person shall be appointed as an alternate director for an independent director unless he is qualified to be appointed as an independent director under the provisions of the Act.

14. An alternate director shall not hold office for a period longer than that permissible to the Original Director in whose place he has been appointed and shall vacate the office if and when the Original Director returns to India.

POWERS OF BOARD

15. Subject to the provisions of the Act, the Board shall be entitled to exercise, all such powers and to do all such acts and things, as the Company is authorised to exercise and do in furtherance of its objects, specified in the Memorandum of Association for which the Company is established except such powers as are required by the Act or the Memorandum or Articles of Association of the Company to be exercised or done by the Company in General Meeting. In exercising any such powers or doing any such acts or things the Board shall be subject to the provisions contained in that behalf in this Act, or in the Memorandum or Articles of the Company or in any regulations not inconsistent therewith and duly made thereunder, including regulations made by the Company in General Meeting.

16. No regulation made by the Company in General Meeting shall invalidate any prior act of the Board which have been valid if that regulation had not been made.

17. All Cheques, promissory notes, drafts, hundies, bill of exchange and other negotiable instruments and all receipts for moneys paid to the Company, shall be signed, drawn, accepted , endorsed or otherwise executed, as the case may be, by such person and in such manner as the Board shall from time to time by resolution determine.

PROCEEDINGS OF THE BOARD

18. The Board shall meet together at least once in every 120 days so that at least four such meetings shall be held in every year for the conduct of business and may adjourn and otherwise regulate its meeting and proceeding as it thinks fit. Notice in writing of every meeting of the Board shall be given to every Director for the time being in India and at his usual address in India to every other Director.

19. All acts done in any meeting of the Board or of a committee thereof or by any person acting as a director, shall, notwithstanding that it may be afterwards discovered that there was some defect in the appointment of anyone or more of such directors or of any person acting as aforesaid, or that they or any of them were disqualified, be as valid as if every such director or such person had been duly appointed and was qualified to be a director.

MANAGER OR SECRETARY

20. Subject to the provisions of the Act :

(a) a manager or secretary may be appointed by the Board for such term, at such remuneration and upon such conditions as it may think fit; and any manager or secretary so appointed may be removed by the Board.

(b) a director may be appointed as manager or Secretary.

21. A provision of the Act, or these Articles, requiring or authorising a thing to be done by or to a director and the manager or secretary shall not be satisfied by its the manager or secretary shall not be satisfied by its being done by or to the same person acting both as director and as or in place of, the manager or secretary.

INDEMNITY

22. Every officer or agent for the time being of the Company shall (without prejudice to any indemnity to which such a person may otherwise be entitled) be indemnified out of the assets of the Company against any liability incurred by him in defending any proceedings, whether civil or criminal, in which judgment is given in his favour or in which he is acquitted or in connection with any application under section 633 in which relief is granted to him by the Court from liability for negligence, default, breach of duty or breach of trust in relation to the affairs of the Company.

Sl. No.	Name, Description, Occupation and address of subscriber	Signature of subscriber	Name, Addressess, Description and Signature of witness
1.	SHEKHAR AGARWAL S/O SHRI S.N. AGARWAL R/O 7, SADHANA ENCLAVE NEW DELHI-110017 (INDUSTRIALIST)	Shekhar Agarwal	I hereby witness & attest the signatures of both the subscribers who have signed in my presence Signature DHRODAR PRASAD GUPTA S/o Late Sh. N.L. GUPTA 19, Rani Jhansi Road, New Delhi-110055 Company M.N. F.C.S. 2411 Secretary
2.	SHANTANU AGARWAL S/O. SHRI SHEKHAR AGARWAL R/O. 7, SADHANA ENCLAVE NEW DELHI-110017 (INDUSTRIALIST)	Shantanu Agarwal	

Place: NEW DELHI Dated: 31st October, 2008